

Binational Unions: New Hope for Guest Workers

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Agricultural guest workers can organize, as recent successful campaigns have shown. But can they build viable unions? To effectively represent guest workers, a union must address problems throughout the work cycle, from recruitment to return home, and this requires unions to operate in both home and host countries. American unions such as the Farm Labor Organizing Committee (FLOC) are experimenting with cross-border representation: organizing in Mexico, where workers are recruited, and bargaining in the United States, where they work. These experiments have opened the door for the creation of binational guest-worker unions, an untested idea. Existing international unions that include members from both Canada and the United States are formed when domestic workers in each country, in effect, hold hands across the border. In contrast, in a binational guest-worker union, transnational workers would straddle the border between home and host country. A truly binational guest-worker union could exploit advantages in each country's political and legal regimes to pressure employers and governments and mitigate the control enjoyed by labor recruiters and growers.

In practice, a guest-worker union operating in both home and host countries faces a wide array of challenges—logistical, financial, political, legal—regardless of whether it seeks official recognition. Indeed, guest-worker unions often trigger deeply held concerns in both the home and host countries about autonomy, democratic accountability, and other fundamental issues. In the end, the experiments are risky. Purely domestic strategies are not adequate, however, when both labor and capital cross borders in the agricultural industry, and so, despite their challenges, these sorts of experiments are worthwhile.

Here I describe recent guest-worker organizing by American unions and suggest potential strategies for building binational unionism in Mexico. Winning recognition in Mexico might help a union develop tools for transnational representation. Mexican labor law, however, would present two primary obstacles to recognition—its requirement of an employment relationship in the home country and its restriction

on foreigners serving as union leaders. Neither of these is insuperable in principle, but they point to the political and legal minefield into which a guest-worker union might fall.

Agricultural guest workers are temporary employees hired in their home country who travel to the host country to work for a limited period of time. These guest-worker programs evolved in the nineteenth century as “compromises designed to maintain high levels of migration while placating anti-immigrant movements.”¹ The labor cycle starts with recruitment, hiring, visa processing, and travel in the home country, followed by travel to—and actual work in—the host country and finally a return to the home country. Because most guest workers seek repeat engagements, rehire is important. The modern American incarnation is the H-2A visa program, first created in 1952. Most imported farmworkers in the United States come from Mexico, making Mexico the springboard for the current “perfect immigrants.”²

On paper, agricultural guest work is highly regulated. H-2A workers receive visas for seasonal work of up to one year, with a maximum extension of up to three consecutive years. The H-2A statute guarantees provisions better than any that are accorded to domestic farmworkers, such as free transportation and housing, workers’ compensation insurance, and a greater than minimum adverse-effect wage rate. Despite these statutory guarantees, U.S. H-2A workers labor under difficult conditions that rarely, if ever, meet the minimum legal standards. They are often isolated, working long hours for wages that are well less than the prescribed adverse-effect rate. Further, H-2A workers are not eligible for safety-net programs, can be terminated at will, and have no right to be rehired. Guest workers in the United States can attempt to have their substantive rights enforced by the courts, as well as by regulatory agencies, but such options usually have proven to be ineffective. H-2A workers are excluded from the National Labor Relations Act and, ironically, from the Migrant and Seasonal Agricultural Workers’ Protection Act.³ As a result, guest workers “are systematically exploited and abused. . . . House Ways and Means Committee Chairman Charles Rangel recently put it this way: ‘This guestworker program’s the closest thing I’ve ever seen to slavery.’”⁴

American unions generally have considered guest workers to be neither desirable nor feasible to organize. In fact, unions often oppose guest-worker programs,

1. On the history of guest workers, see Cindy Hahamovitch, “Creating Perfect Immigrants: Guest-workers of the World in Historical Perspective,” *Labor History* 44 (2003): 69–94; Gunther Peck, *Reinventing Free Labor: Padrones and Immigrant Workers in the North American West, 1880–1930* (Cambridge: Cambridge University Press, 2000); and Mae M. Ngai, *Impossible Subjects: Illegal Aliens and the Making of Modern America* (Princeton, NJ: Princeton University Press, 2004).

2. Hahamovitch, “Creating Perfect Immigrants,” 69.

3. On working conditions, see Mary Lee Hall, “Defending the Rights of H-2A Farmworkers,” *North Carolina Journal of International Law and Commercial Regulation* 27 (2002): 521–29; and Lisa Guerra, “Modern-Day Servitude: A Look at the H-2A Program’s Purposes, Regulations, and Realities,” *Vermont Law Review* 29 (2004): 185–214.

4. Mary Bauer, *Close to Slavery: Guestworker Programs in the United States* (Montgomery, AL: Southern Poverty Law Center, 2007).

arguing that employers facing a shortage should improve wages and working conditions to attract domestic workers rather than import others.

Among agricultural worker unions, these views are changing. In 2004, FLOC won union recognition for roughly eighty-five hundred guest workers employed by the North Carolina Growers Association (NCGA) in 2004. The win capped a five-and-a-half-year campaign. The NCGA, a farm-labor contractor providing workers to more than one thousand growers, was the formal employer of the guest workers and signed the contract, but the deal was reached because FLOC targeted the Mt. Olive Pickle Company, the principal integrator, with a consumer boycott. (An integrator contracts with farmers for specific lots of produce and integrates them into the final product.) After Mt. Olive agreed to pay more for the cucumbers it bought, the NCGA agreed to pass on increases to workers and sign a union contract. The agreement was the first signed by agricultural employers in North Carolina and included another first as well: a union hiring hall in Mexico.⁵

In April 2006, the United Farm Workers (UFW) announced an agreement with Global Horizons, a farm-labor contractor employing one thousand to three thousand guest workers in approximately a dozen states. The impetus for Global Horizons to sign the union contract came when Washington State revoked its license to do business and Global Horizons needed to rehabilitate its image. The contract included provisions guaranteeing workers protection from retaliation, firing only for just cause, a 2 percent raise in wages above the mandated H-2A wage, workers' compensation coverage, and other benefits. Also, the company agreed to focus its recruitment efforts in Mexico rather than in Asian countries such as Thailand.⁶

Why were these unions meeting with sudden success, and why was that success occurring with guest workers rather than other agricultural workers? Guest-worker employers may be more vulnerable to unionization efforts than other agricultural employers because of the information they must share when seeking authorization to employ guest workers and the additional legal obligations they incur. Companies such as Mt. Olive may have increased sensitivity to public opinion because they contract with companies that employ foreign workers.

Both the UFW and FLOC used this principle when they mounted effective campaigns against employers with well-documented histories of guest-worker abuses. FLOC launched a consumer boycott that ended in a signed agreement with Mt. Olive Pickle in September 2004. This strategy is similar to that used by the Coalition of Immokalee Workers (CIW), which won improvements for farmworkers, mostly domestic workers, by focusing on the large fast-food chains that purchase tomatoes

5. Steven Greenhouse, "Farmworkers' Union Is Set to Announce First National Contract for Guest Workers," *New York Times*, April 11, 2006; David Griffith, "Challenges to Farmworker Organizing in the South: From the Southern Tenant Farmers Union to the Farm Labor Organizing Committee's Mt. Olive Campaign," *Culture and Agriculture* 26 (2004): 25–37.

6. Greenhouse, "Farmworkers' Union"; Paul Nyhan, "Guest Farm Workers Get Contract," *Seattle Post-Intelligencer*, April 12, 2006; Andrew Sirocchi, "Global Horizons to Unionize with United Farm Workers," *Tri-city Herald*, April 16, 2006.

grown in Florida rather than on the employers. This does not suggest a new path for organizing so much as reinforcing the lessons of decades of difficult farmworker organizing: companies with the most vulnerabilities—informational, legal/regulatory, or public image—make the best targets.

Thus far, FLOC's transnational efforts have met with mixed success. In 2005, soon after winning the agreement with Mt. Olive Pickle, FLOC opened an office in Monterrey, Mexico, a central site for obtaining guest-worker visas, and began outreach efforts in guest workers' hometowns. FLOC won improvements in its initial collective bargaining agreement, including modest raises and a grievance process. By 2006, more than four thousand grievances had been filed. In some cases in which the workers had returned to their home country after being injured or fired, resolving those grievances required investigative work in Mexico.

This generated a backlash from those who had benefited from workers' lack of knowledge. These groups included recruitment agencies hired by U.S. companies, who often extorted money or property from workers before adding the workers to the visa list. One FLOC organizer was threatened with deportation in 2005 after being "detained seven times by local, state, and federal Mexican police for simply conducting meetings in villages educating workers about their rights."

Anti-union violence, thought to be instigated by recruiters, has been directed at FLOC organizers who attempted to educate potential workers about the well-documented and ugly nature of guest-worker recruitment. FLOC organizers began receiving threats soon after opening their office in 2005, but those threats escalated in 2007 after FLOC began to inform workers about an agreement that prohibited recruiters in Mexico from charging fees for visa applications, travel costs, or other expenses.⁷ This agreement was part of the settlement of an earlier FLOC lawsuit, in which the NCGA agreed that it, not workers, would pay all recruiting fees for two years. FLOC's activities in Monterrey included monitoring Manpower of the Americas, the recruiting agency used by NCGA. Union staff contacted workers to explain the terms of the settlement and prevent recruiters from continuing to collect fees. This, reported Baldemar Velasquez, president of FLOC, "took away a gold mine" from recruiters. In likely retaliation, as-yet-unidentified intruders broke into FLOC offices and murdered organizer Santiago Rafael Cruz in spring 2007. Despite the surrounding dangers, FLOC organizers and workers have continued to engage in outreach activities in the region.

Union registration in Mexico might help guest-worker unions address the immediate problems faced by members and promote their long-term interests. The right to freedom of association is well protected, at least in principle, under Mexican law. The Mexican constitution itself "provides workers the right to freely associate, to organize unions, and to strike," and agricultural workers are not exempt. The Mexi-

7. Julie M. McKinnon, "FLOC Sets Its Sights on Future Fights," *Toledo Blade*, October 3, 2004; Stephen Franklin, "Sides Find Scarce Common Ground," *Chicago Tribune*, November 11, 2007; Bauer, "Close to Slavery."

can federal labor law reiterates these rights and sets out the rules for collective bargaining. Substantive guarantees of union rights are strong, but enforcement is weak or, more precisely, “selective.”⁸

In Mexico, legal registration of unions is mandatory. Legal status affords protections against anti-union retaliation, grants standing in labor tribunals and processes, and offers access to mechanisms for organizing new members, advancing members’ interests, and defending their rights. Legally recognized unions have access to Juntas de Conciliación y Arbitraje (JCA), labor tribunals responsible for enforcing labor rights. Though the JCAs are justifiably criticized, they provide a forum for protesting abuses. A guest-worker union with legal status in Mexico could file claims under the labor side agreement to the North American Free Trade Agreement or through the International Labor Organization (ILO). There might be strategic advantages in initiating claims from the home country rather than from the host country or from home and host countries simultaneously. Registration is not a panacea, however. There is no one tool that allows guest-worker unions to radically transform the industry and stop abuses, but each tool adds to the arsenal. The tools made available through official union registration in Mexico would be effectively limited by the notorious corruption of many Mexican union and government officials.

As mentioned earlier, however, there are two significant legal obstacles to registration in Mexico: the requirement of an employment relationship in Mexico and the ban on foreigners as trade union officials. Mexico resembles most countries in conditioning the right to form a union on the existence of a domestic employment relationship. Under the Mexican constitution, “all workers within the national territory regardless of occupation or status” are afforded the freedom of association and other rights.⁹ The baseline requirement is a labor relationship (*relación de trabajo*), defined as existing when, “regardless of the origin of the relationship, a worker performs subordinate work for another person in exchange for remuneration.” Some workers are excluded from collective labor rights, such as confidential workers, but the explicit exemptions are few and do not include agricultural workers or guest workers. The first legal problem for a guest-worker union seeking to register is that guest workers do not actually perform subordinate work in Mexico for pay. Guest workers have what are called *triangular employment relationships*, which makes the situation more complicated. Triangular employment relationships exist when workers are “employed by an enterprise (the ‘provider’) who perform work for a third party (the ‘user’).”¹⁰

8. Carlos Reynoso Castillo, “Situación de Trabajo y Protección de los Trabajadores: Estudio del caso de México,” www.ilo.org/public/english/dialogue/ifpdial/downloads/wpnr/mexico.pdf (accessed March 29, 2010); Lance Compa, *Justice for All: The Struggle for Worker Rights in Mexico: A Report by the Solidarity Center* (Washington, DC: Solidarity Center, 2003), 13, n9.

9. *The Rights of Nonstandard Workers: A North American Guide* (Washington, DC: Commission for Labor Cooperation, 2003).

10. *Digest of Decisions and Principles of the Freedom of Association Committee of the Governing Body of the ILO*, 5th ed. (Geneva, Switzerland: International Labour Office, 2006).

Fortunately, Mexican labor law generally endorses a goal of broad worker coverage. Article 28 of the Mexican federal labor law holds recruiters, along with employers, responsible for ensuring respect for worker rights; this suggests that the employment relationship is created when migrant workers are hired in Mexico and rights are guaranteed under Mexican law. If there is an employment relationship cognizable in Mexico for purposes of enforcing minimum substantive guarantees, then the employment relationship arguably should also be recognized for purposes of exercising union rights. If there is an employment relationship, then union registration should not be denied.

The prohibition on foreigners as trade union officials is the second legal obstacle likely to face a host-country guest-worker union seeking to register and operate in Mexico. Under article 372 of Mexican federal labor law, no foreigners may serve as officers of trade unions. This provision is connected to the constitutional ban on foreign involvement in politics. Nevertheless, it is not clear that Mexican authorities would apply this prohibition to a guest-worker union attempting to register. If it did, another constitutional provision could come into play. Mexico's constitution requires the incorporation of principles from ratified treaties, such as ILO conventions, into domestic law "insofar as they are to workers' benefit." In the case of a conflict, the ILO conventions should prevail "if it is to the advantage of the worker." On a number of occasions, the ILO has criticized the article 372 prohibition as being overly broad. The ILO has taken the position that "legislation should be made flexible so as to permit the organizations to elect their leaders freely and without hindrance, and to permit foreign workers access to trade union posts."¹¹ Were Mexico to apply article 372 of the Mexican federal labor law to a guest-worker union, it would create a conflict between a federal labor law and the ratified ILO convention. The convention, per article 133 of the Mexican constitution, should trump the federal labor law provision. Unfortunately, that would not completely clarify the situation, because the ILO convention does not completely ban restrictions; reasonable restrictions could require a certain proportion of union officers to be Mexican nationals or take other forms. One could imagine, for example, new regulations requiring that Mexican unions be able to disaffiliate with an international union without facing significant obstacles. Although such regulations could be problematic for other reasons, the point is that the nature of "reasonable restrictions" in the context of binational guest-worker unions is unexplored.

Under basic principles of freedom of association, the ban on foreign trade union officers should not be used to prevent a guest-worker union from registering in Mexico. Such an attempt might spur different forms of regulation to protect unions and Mexican politics from foreign interference. Moreover, Mexico has been roundly criticized for placing excessive conditions amounting to previous authorization on domestic unions seeking to register. By delaying and denying registrations, among

11. *Protection of Migrant Agricultural Workers in Canada, Mexico, and the United States* (Washington, DC: Commission for Labor Cooperation, 2002). ILO, *Digest of Decisions*, 88.

other tactics, the official Mexican labor movement has quashed most expressions of independent unionism. Whether guest-worker unions would elicit similar obstructions remains to be seen.¹²

The prospect of truly binational guest-worker unions is exciting in some ways and problematic in others. There are complicated politics and complex legal issues that stand in the way of developing effective new transnational forms of worker organization. Binational guest-worker unions are just one sort of experiment. Another option might be the direct affiliation of workers employed in Mexico with U.S.- or Canadian-based unions to create pan-North American unions. That would take the guest-worker experiment a significant step further and raises concerns on all sides of all borders about national sovereignty, governance, accountability, financial management, and other issues. Canadian and U.S. unions have struggled to balance local decision making and resource allocation with central coordination, and the history is marked by episodes of struggle within unions or labor councils. To bring Mexican affiliates into the fold would be immensely more challenging. Nevertheless, the time is ripe for unions to be creative. Exploring new structures and strategies, including transnational ones, is risky, but those risks must be weighed against the likelihood of further decline in the absence of change. Thoughtful experimentation—like the guest-worker organizing experiments undertaken by agricultural unions—may help to chart the way to a labor movement resurgence. ■

12. Geraldo von Potobsky, "Freedom of Association: The Impact of Convention No. 87 and ILO Action," *International Labour Review* 137 (1998): 195–221.

